

UNITED STATES DISTRICT COURT

EASTERN

District of NEW YORK

HECTOR GARCIA,

V.

AMENDED

SUMMONS IN A CIVIL CASE

THE CITY OF NEW YORK,
POLICE OFFICER KELVIN PEREZ,
POLICE OFFICER MELVIN THOMAS
and DETECTIVE BRIAN McSWEENEY

CASE NUMBER: 07 CV 4331
(SJF) (RER)

TO: (Name and address of Defendant)

MICHAEL A. CARDOZO
Corporation Counsel
Attorneys for Defendants
100 Church Street
New York, New York 10007

YOU ARE HEREBY SUMMONED and required to serve upon PLAINTIFF'S ATTORNEY (name and address)

HECHT, KLEEGER, PINTEL
& DAMASHEK
19 West 44th Street - Suite 1500
New York, New York 10036

an answer to the complaint which is herewith served upon you, within _____ days after service of this summons upon you, exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for the relief demanded in the complaint. You must also file your answer with the Clerk of this Court within a reasonable period of time after service.

CLERK

DATE

By) DEPUTY CLERK

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

=====X
HECTOR GARCIA,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

Docket No.: 07 CV 4331
(SJF) (RER)

THE CITY OF NEW YORK,
POLICE OFFICER KELVIN PEREZ,
POLICE OFFICER MELVIN THOMAS
and DETECTIVE BRIAN McSWEENEY

Defendants,

PLAINTIFF DEMANDS
A TRIAL BY JURY

=====X

Plaintiff, by his attorneys, HECHT, KLEEGER, PINTEL & DAMASHEK, as and for their
Verified Complaint herein, respectfully set forth and allege:

AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF

1. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York.
2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a corporation doing business in the State of New York.
3. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK operated a police department as part of and in conjunction with its municipal function.
4. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK maintained said police department.
5. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK managed said police department.

6. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK controlled said police department.

7. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers, detectives, and other personnel, to work as representatives of THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK employed police officers and detectives, known herein as POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY.

9. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

10. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, had the duty to ensure that its said servants, agents, police officers, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

11. That at all times hereinafter mentioned, the defendants POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY, were servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

12. That on the 7th day of July, 2007, the plaintiff was lawfully present in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings.

13. That on the 7th day of July, 2007, defendants and other police officers, detectives and/or servants and/or agents of the police department of the defendant THE CITY OF NEW YORK were present in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings.

14. That on the 7th day of July, 2007, the plaintiff was assaulted and battered by said police officers, detectives and/or agents and/or servants of the Police Department of the defendant, THE CITY OF NEW YORK, while he was lawfully in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings.

15. That on the 7th day of July, 2007, the plaintiff was assaulted and battered by POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY, while he was in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings.

16. That on the 7th day of July, 2007, the plaintiff was wantonly, intentionally and maliciously assaulted, battered and restrained in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings, and continuing thereafter at other locations.

17. That on the 7th day of July, 2007, the plaintiff was wantonly and intentionally assaulted, battered, abused, threatened and manhandled, by police officers, detectives and/or agents and/or servants of the police department of defendant, THE CITY OF NEW YORK, while he was lawfully present in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings, and continuing thereafter at other locations.

18. That on the 7th day of July, 2007, the plaintiff was wantonly and intentionally assaulted, battered, abused, threatened and manhandled by POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY, while he was lawfully present in the vicinity of Irving Place and Himrod Street, in the City and State of New York, County of Kings, and continuing thereafter at other locations.

19. That the foregoing occurrences and the resulting injuries to the plaintiff was caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, excessive use of brutal force and wrongful assault and battery on the part of the police department of defendant, THE CITY OF NEW YORK, its servants, agents, police officers, detectives and/or employees, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

20. That the foregoing occurrences and the resulting injuries to the plaintiff was caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, excessive use of brutal force and wrongful assault and battery on the part of POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiffs contributing thereto.

21. This action arises under the United States Constitution, particularly under provisions of the Fourth Amendment to the Constitution of the United States, and under Federal law, including the Civil Rights Act, Title 42 of the United States Code, Sections 1983 and 1988 and the rights under the Constitution and laws of the State of New York.

22. Each and all of the acts of the defendants herein were done by the police department of defendant, THE CITY OF NEW YORK, its servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

23. Each and all of the acts of the defendants herein were done by POLICE OFFICER KELVIN PEREZ, POLICE OFFICER MELVIN THOMAS and DETECTIVE BRIAN McSWEENEY, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

24. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all

to their great damage.

25. That on/or about July 30, 2007, and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff, and plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

26. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendant.

27. That the said defendant THE CITY OF NEW YORK was negligent and has refused and neglected to adjust, settle and pay same.

28. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

29. That all conditions and requirements precedent to the commencement of this action have been complied with.

30. That this action falls within one or more of the exceptions set forth in CPLR 1602.

31. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with costs, disbursements and attorney's fees.

WHEREFORE, plaintiff demands judgment against the defendants, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs, disbursements and attorney's fees of this action, and with interest from the date of this occurrence.

Dated: March 17, 2008
New York, New York

Yours, etc.

By: 
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HECHT, KLEEGER, PINTEL
& DAMASHEK
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